ARTICLE 4. To see if the Town will vote to amend the Winchester Zoning Bylaw by amending Section 3.5.5 to add insufficient lot width to the circumstances under which a reconstruction, extension, alteration, or change to a conforming structure on a nonconforming lot may be permitted; and by amending Table 4.1.1, Table of Dimensional Requirements, to reduce the minimum lot width in the RDA District from 120 feet to 100 feet; all as set forth below; or take any other action in relation thereto.

Text to be added is indicated by underlined text and text to be removed is indicated by ~~strikethrough text~~.

1. Amend Section 3.5.5 by inserting "lot width" among the listed dimensional requirements as follows (triggers (1) and (3) remain unchanged):

2. A reconstruction, extension, alteration or change to a structure which complies with all current setback, yard, building coverage, and building height requirements but is located on a lot with insufficient frontage and or lot width, where the reconstruction, extension, alteration or change will also comply with all of said current requirements.
3.

2. Amend Table 4.1.1, Table of Dimensional Requirements, by changing the Minimum Lot Width (in feet) for District RDA from ~~120~~ to 100.

(Planning Board)

MOTION: MOVED AND SECONDED that the Town approve Article 4 as printed in the Warrant.

BACKGROUND: *Section 3.5.5 lists changes to a conforming structure on a nonconforming lot that do not require a special permit, including where the lot has insufficient area or frontage. Insufficient lot width is not on that list, and as a result, an addition that meets every setback, coverage, and height requirement still needs a special permit if the lot is narrower than the district minimum. This article adds lot width to the list in all districts. It also reduces the RDA minimum lot width from 120 to 100 feet, matching the RDA frontage requirement and maintaining consistency with all other districts.*

For example, picture a homeowner planning an addition. The design meets every zoning rule, such as distance from the property lines, how much of the lot is covered by buildings, and height. However, the house sits on a lot that is just slightly narrower than the bylaw requires. Because of that, the addition must go to the Special Permit Granting Authority for a special permit, even though the addition itself follows every rule. A special permit review can be long and costly, and for a project like this one it serves no real purpose.

If the same addition were on a lot that was too small or had too little street frontage, no special permit would be required. This amendment gives narrow lots the same treatment as those other lots, making the bylaw more consistent.

The amendment also lowers the RDA lot width requirement from 120 to 100 feet. That way, as in every other district, the required lot width matches the required frontage. This change is made in Table 4.1.1, Table of Dimensional Requirements.

2/3rd Vote Required